completed the age of 50 years is not eligible for appointment as a Chairman or Member. They hold office for a term of four years or until they attain the age of 70 years in case of Chairman and 67 years in case of Members, whichever is earlier.[1]

The appointment of Chairman and Members in the CAT is made by the central government on the basis of recommendations of a search-cum-selection committee chaired by the Chief Justice of India or a Judge of Supreme Court, who is nominated by the Chief Justice of India.

The CAT is not bound by the procedure laid down in the Civil Procedure Code of 1908. It is guided by the principles of natural justice. These principles keep the CAT flexible in approach. Only a nominal fee of ₹50 is to be paid by the applicant. The applicant may appear either in person or through a lawyer.

Originally, appeals against the orders of the CAT could be made only in the Supreme Court and not in the high courts. However, in the *Chandra Kumar* case[2] (1997), the Supreme Court declared this restriction on the jurisdiction of the high courts as unconstitutional, holding that judicial review is a part of the basic structure of the Constitution. It laid down that appeals against the orders of the CAT shall lie before the division bench of the concerned high court. Consequently, now it is not possible for an aggrieved public servant to approach the Supreme Court directly against an order of the CAT, without first going to the concerned high court.

 **State Administrative Tribunals**

The Administrative Tribunals Act of 1985 empowers the Central government to establish the State Administrative Tribunals (SATs) on specific request of the concerned state governments.

Like the CAT, the SATs exercise original jurisdiction in relation to recruitment and all service matters of state government employees. The chairman and members of the SATs are appointed by the central government on the recommendations of a search-cum-selection committee shared by the Chief Justice of the High Court of the concerned state.

The act also makes a provision for setting up of joint administrative tribunal (JAT) for two or more states. A JAT exercises all the jurisdiction and powers exercisable by the administrative tribunals for such states.

TRIBUNALS FOR OTHER MATTERS

Under Article 323B, the Parliament and the state legislatures are authorised to provide for the establishment of tribunals for the adjudication of disputes relating to the following matters:

1. Taxation
2. Foreign exchange, import and export
3. Industrial and labour
4. Land reforms
5. Ceiling on urban property
6. Elections to Parliament and state legislatures